



THE GOVERNMENT ACTED ON THE POLLUTION IN MUMBAI ONLY AFTER THE COURTS ASKED IT TO

doesn't question the Government. PILs have become a tool to police them."

A case in point is the court's ruling on January 27, 2009, through which it banned all "non-forest activity" in mangrove areas, even if such areas are not "protected forests". In October 2005, the high court, responding to a PIL, had banned destruction of mangroves in Maharashtra. Even after acquiring permission from the competent authority to carry out work in mangrove areas, the high court's sanction is necessary. This just shows the pathetic state of affairs in Maharashtra where the Government cannot even regulate or protect forest areas. The court has to clear projects on a case-by-case basis.

After the Emergency of 1975, the Supreme Court opened the floodgates to PILs. Be it the case of missing children, for which the Bombay High Court ordered DGP S.S. Virk last year to find a missing child in 10 days or the case of bandhs in Mumbai, most of

Law and Disorder

Most of the verdicts in the PILs filed against the Government went in favour of the petitioners, holding the administration responsible for the problems

2010

PIL: Seeking a ban on non-forest activity on mangroves all over Maharashtra and not just in Mumbai

Petitioner: Bombay Environmental Action Group

Verdict: In January 2010, the Bombay High Court rules in a 5-year-old case that non-forest activity can be allowed in areas where mangroves grow and directs that even after acquiring permission from authorities, the high court's sanction will be required

2009

PIL: Against inferior quality of bullet-proof jackets used by the Mumbai Police during 26/11

Petitioner: Social Activist Sanjay Daundkar

Verdict: Pending, but court has directed the Government to reply to the PIL. Eight officers have been issued notices as a result.

2009

PIL: Against state of Maharashtra, demanding a stay against the Government's 2007 decision to give subsidies to grain-liquor making units. The subsidies primarily benefit distilleries owned by politicians.

Petitioner: Social Activist Chetan Kamble

Verdict: Bombay High Court stays disbursement of subsidies to the distilleries in January 2010.

2008

PIL: Seeking action against erring policemen, bureaucrats and ministers for negligent and irresponsible acts during the 26/11 terror attacks

Petitioner: Advocate V.P. Patil

Verdict: Court demands to know post-26/11 measures taken by Government.

The Bombay High Court demands the Pradhan Committee Report in a sealed envelope. State Government challenges ruling in Supreme Court. Report is leaked to the press and tabled in the Assembly.

2006

PIL: Against illegal encroachment by eatery Kailash Parbat of land reserved for recreation ground in Colaba

Petitioner: First Pasta Lane Residents Association

Verdict: Court rules in favour of residents' association, land to be cleared of all encroachments

2003

PIL: Against bandhs declared by two political parties

Petitioners: Gerson da Cunha, Alyque Padamsee and B.G. Deshmukh along with four daily wage earners in the city

Verdict: A division bench, in an oral comment, says the parties would have to pay substantial compensation for calling the bandh.

1999-2003

PIL: Against Municipal Corporation of Greater Mumbai for increase in pollution levels in the city due to vehicular traffic. Another application to this petition filed in 2003 to decongest the city by applying restraint on private vehicles.

Petitioner: Bombay Environmental Action Group

Verdict: In consultation with an expert committee including the transport commissioner, court orders phasing out of old taxis unless they convert to CNG/LPG by March 1, 2002. Upgradation of BEST bus fleet by replacing them with new CNG buses is also instituted.

1998

PIL: Seeking implementation of the Municipal Corporation of Greater Mumbai's guidelines on hawkers as approved by the Supreme Court in 1985 to curtail illegal hawking.

Petitioners: Neera Punj and Naina Kathpalia

Verdict: Despite 17 orders from the Supreme Court and a contempt of court petition, the streets of Mumbai are cluttered with illegal hawkers.